ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	92nd Commission Meeting
DATE:	17 August 2022
TIME:	02:00 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DICSUSSION	DECISION
1.	Present the Review of security system of the ACC - Major Gyeltshen & SS *Major Gyeltshen, who has been deputed to ACC work to establish the security unit presented the second draft on the review of security system of the ACC (attached as Annexure I). The first draft was presented to Commission and Management during the 94th WWP and Management meeting. Commission directed Major to priorities the recommendations as immediate, mid and long term along with estimate costing and present during the Commission meeting for implementation.*	Specific comments on the list of requirements were: **1. Walk- Through Scanner (DFMD) to be put under mid-term requirement;** **2. Window grills under mid-term to be put under immediate requirement;** **3. *Training on unarmed combat and firearms*: Major and HRS to explore possibility to initiate the training as part of mandatory to new recruits;** **4. PPD to ensure that awareness on personal safety is reflected during QSM or any other forums;** **5. CCTV with better resolution to be procured based on available budget and other priorities;** **6. HRC and Finance Committee (FC) to work on recruitment of additional security personnel as proposed; and** **7. PPD and AFS to work of resubmission of proposal on uniform to MoF.** **SS Head to compute the total amount for list of requirements under immediate and see possibility to meet within the approved budget. However, if additional budget is required, it should be proposed to FC for reappropriation from other activities given its priority.** **Major to work on formulating the Terms of Reference of security personnel and the mandate of the security unit.**

2.	Present Guideline on Information Enrichment (IE)- DoPS & Guideline Review Committee *The revised guideline on IE is the third version with the first one developed in 2015 when it was termed Discreet Inquiry and was carried out by Technical Support Division. Second revision was done in 2019 when the mandate was shifted to DoPS and accordingly termed as Information Enrichment.*	***To be continued in next Commission Meeting since the meeting was adjourned for the Commission to review and decide on an urgent case.***
3.	Present on the Performance Management System- HRS	***Deferred***
4.	Others:	

Commissioner **Commissioner** **Chairperson**

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Assessment and recommendations of security system of the Anti-Corruption Commission

Background : Security threats to the office of the Anti-Corruption Commission, its employees, the official records, and the information system has been in existence since the establishment of the institution and yet too little has been done to mitigate these security threats. Employees are being verbally abused, mentally harassed, physically battered and their social connections damaged owing to the investigative nature of their job mandates.

The office facilities are likely to be damaged, vandalized, sabotaged and broken into by any disgruntled outsiders, natural disaster and accidental incidences. Official records and documents may be stolen, destroyed, misused and tampered by both insiders and outsiders. Information system can be hacked and destroyed, stolen or abused through various cyber hacking techniques such as phishing, malware, trojan and ransomware.

The personal security threats to the employees of the commission were proven real and eminent on the afternoon of April 29, 2022 where the accused and his family battered a senior official of the commission. The incident was life threatening as the accused used knife to commit the crime in the premise of The Supreme Court of the country. Similarly, the threats to the facilities, official records and the information system are also proven real and eminent in many international business companies and institutions.

Thus, the commission has decided to take the security concern very seriously and sought the assistance of the Royal Bhutan Police to find a way forward to mitigate such security risks. This report hence entails the through observations of the existing security system of the commission and the recommendations to build multiple layers of physical security measures to mitigate and minimize the threats.

The existing security system f the office of the ACC has been reviewed on July 18, 2022.

1. ***Perimeter Security:*** The ACC facilities of Thimphu and Phuntsholing are fenced with iron grills and concrete posts. There are CCTV cameras covering the premises and entry gates to the facilities. Then CCTV camera monitor/screen is in the duty room of the main gates and do not have dedicated CCTV operator**.**

   Recommendations: Physical perimeter security is first layer of security to stop physical intrusions from outside across the boundaries/perimeter by making such intrusions difficult or impossible. It is a combination of physical barriers and technology to block access to the facility to protect the people/data and records within the facility from being harmed, stolen or destroyed.
   CCTV cameras to be repositioned to strategic places to cover more areas. CCTV control room to be set up at the security unit office with a dedicated CCTV operator round the clock.
   Perimeter fencing to be reinforced with concrete walls and concertina on top. Lighting of the facility premises may be improved for deterrence and bushes around the fencing may be cleared to improve visibility.

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2. ***Access Control 1: T***he main gate/entrance to the facility (Thimphu) is manned by one security personnel in each shift. The visitors are being frisked with metal detector (HHMD) and are given access with a visitor card. The duty room has CCTV screen but without operator. The security duty is generally busy with the car parking management. While the security duty is engaged in car parking management, visitor monitoring is observed less effective. Phuntsholing facility has CCTV without security personnel. The entry gate is unlocked and access is free to every one currently.

   Recommendation: This is the second layer of physical security measure. It must detect any suspicious character and object that are likely to penetrate through. Therefore, it would be advisable to have a Walk-Through Scanner (Door Frame Metal Detector) and additional security personnel (2 in each shift). Additionally, the car parking may be allowed to only the employees of the commission and not to any outsider. Phuntsholing facility may be assessed as high risk and require attention at the earliest.

3. ***Access Control 2(Main entrance to the office building):*** Both Thimphu and Phuntsholing facilities do not have any security measure in place at this point. Anyone who has defeated the physical security system of access control 1 can enter the facilities and visit any offices and divisions within the facilities.

   Recommendations: This is the third layer of physical security measure and must be very effective because if the perimeter and access control 1 security measures are defeated, it must be intercepted here and access must be denied. Thus, it is verry crucial that a security measure is in place to ensure that any visitor entering beyond this point is safe and is not likely to cause any harm to the lives and properties within the facility. It is advisable to have digital access keys for all the employees so that no visitor can have access. Furthermore, each floor within the facilities may also be secured with another unique digital access key to limit the access to the occupants of that floor only. The threats from insider is the biggest threat. The most vulnerable floor is the floor occupied by the investigation division and hence the entry to this floor may be restricted to only the investigation division officers only.

   The above recommendations on physical security are being submitted to establish a four - layer security system to protect the facilities, information system, official records and the employees from all the eminent security threats.

4. ***Escorting of clients:*** The current system of escorting the suspects between the detention (RBP) and the ACC/Court is taken care by the RBP. However, escorting of clients between the ACC and the court is carried out by ACC officials either in office vehicle or in private vehicles without escort duty.

   Recommendations: The amount of personal security risk increases with exposure of the suspects to the investigator/prosecutor and vise versa. Since most of the clients are not even cuffed, it is very likely that the suspects may harm the accompanying officila or attempt to escape while travelling together in the same vehicle without any guard. It may be advisable

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to discontinue such practice as a risk mitigating step. Escort protocols need to be developed and followed and it may include escorting the suspects in escort vans by security personnel.

5. ***Search and Seizure security protocols:*** Currently there is no standard security protocol for conducting search, seizure and arrest. It is being done depending on apprehension of substantial amount of security risk. Wherever risk is foreseen, the ACC has been seeking the help of RBP.

   Recommendations: It is advisable to have a set of standard security protocols for search, seizure, arrest, escort/detention and complaint receiving. Every step of investigation involves security risk. The commission may also be recommended to set up a security desk in the head office and at Phuntsholing at the earliest with adequate number of trained security professionals and a clearly defined mandate.

6. ***Training on fire arms and unarmed combat***: ACC officers are not trained on fire arms and basic martial arts leaving them unprepared to handle aggressive suspects.

   Recommendation: Training of the ACC officers on unarmed combats and fire arms are seen very important. Suggest to collaborate with agencies like the RBP to impart training to all ACC officer along with the cadet officers of the RBP every year at the Police Training Institute, Jigmeling followed by regular refresher courses. They may also be provided with a working uniform so that people can identify them during their daily affairs in the field. In the US, India and Singapore, corruption cases are taken up by the FBI, CBI and CPIB where the professionals are trained with basic martial arts skills and handling and shooting of fire arms. These professionals are provided with working uniforms and personal fire arms for deterrence and self-defense.

7. ***General recommendations***: As expressed by the commission, the security risk involved due to the investigative mandates have made it very difficult for the commission to attract young professional. Additionally, it is even more difficult to retain the experienced professionals especially due to lack of security measures to assure the safety of the lives and properties of the employees and their families. Therefore, it may be recommended to have security measures to ensure their safety after their office hours. Additionally, a secured housing colony and a secured post retirement plan for the employees are highly recommended.
   Phuntsholing may currently discourage visitors from using the office guest room and conference room as there is no physical security system in place.

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8. List of requirements considering the above recommendations along with estimated costs:

Sl.no	***Particulars***	***Quantity***	***Urgency***	***Estimated cost***	***Remarks***
1	Walk-Through Scanner (DFMD	2	Immediate	5-6 lakhs each	One each for Thimphu and Phuntsholing
2	Small baggage Scanner	2	Long term	15lakhs	One each for Thimphu and Phuntsholing
3	Hand cuffs	8 pairs	Immediate	500x8	Two pairs for each regional office
4	Digital Access Key system	2	Immediate	200000/-	One each for Thimphu and Phuntsholing
5	Hand Held Metal Detector	2	immediate	5500x2	One each for Thimphu and Phuntsholing
6	Cupboard	2	Immediate	In stock	One each for Thimphu and Phuntsholing
7	Window grills	21	Mid term		3 for interrogation rooms of Thimphu. 18 for interrogation rooms and ground floor of Phuntsholing office
8	Concrete perimeter wall with concertina		Long term		For all the ACC facilities
9	Training on unarmed combat and firearms		Mid term		The field officers to be trained with the officer trainees of the RBP right after their recruitment along with regular refresher courses
10	Uniform		Mid term		Uniform for all officers.
11	CCTV Control room	2	Immediate	Rooms available	Phuntsholing and Thimphu must have a CCTV control room with dedicated operator.

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12	VHF radio (walkie talkie sets)	8	Mid term	20000x2	For security unit of Phuntsholing and Thimphu
13	TV Screen	2	Immediate	80000x2	40i nch TV for Thimphu and Phuntsholing control room
14	VHF radio station	2	immediate	45000x2	For Thimphu and Phuntsholing
15	Security personnel	13	immediate	20000x13(per month)	For Thimphu and Phuntsholing
16	Escort Van	2	Immediate	1400000x2	Tata Xenon

Gyeltshen

MA Security Management

(Major), RBP

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